

M/S Modinagar Paper Mills Pvt. Ltd. v. Pashchimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 20 March 2026 · WRIT - C No. - 67480 of 2011 · **Writ dismissed for want of prosecution; interim discharged.**

HEADNOTE

Writ challenging the vires of the U.P. Electricity Supply Code, 2005 dismissed for want of prosecution after counsel holding brief stated that the petitioner's advocate had no instructions. Any interim order stood discharged. A recall application would be entertained only if supported by the petitioner's own affidavit. Alternative remedy and the vires challenge, kept open in 2011, were never decided.

FACTUAL SUMMARY

M/s Modinagar Paper Mills Pvt. Ltd. petitioned the Allahabad High Court against Pashchimanchal Vidyut Vitran Nigam Ltd. challenging the vires of the U.P. Electricity Supply Code, 2005. On 24 November 2011 a Division Bench refused to dispose of the writ on alternative remedy without affidavits because the Code's vires was in issue, and called for a counter and rejoinder. After years of adjournments at the petitioner's request, on 20 March 2026 counsel holding brief said the petitioner's advocate had no instructions.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

want of prosecution

HOLDING

Where counsel holding brief states that the petitioner's advocate has no instructions, the writ is dismissed for want of prosecution, any interim order is discharged, and a recall application will be entertained only if supported by the petitioner's own affidavit. ¶ 3-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VIRES OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

Raised in the writ; all questions kept open on 24.11.2011; never decided.

NOT DECIDED — AVAILABILITY OF ALTERNATIVE REMEDY

Expressly kept open on 24.11.2011; never decided.